



CHAPTER 41.

An Act to restrict night work in the baking industry, and for purposes connected therewith. A.D. 1938.
[13th July 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, no person shall be employed in any factory in the manufacture of bread or flour confectionery or in any other work incidental thereto between the hours of eleven o'clock in the evening and five o'clock in the morning.

Restriction of night work in the manufacture of bread and flour confectionery.

(2) The Secretary of State may, on the application of any trade board or association of employers or workers which appears to him to be concerned, make regulations restricting the extent to which persons who, otherwise than in pursuance of a contract of service, engage by way of trade or for purposes of gain in the manufacture of bread or flour confectionery or in any other work incidental thereto, may be so engaged between the hours of eleven o'clock in the evening and five o'clock in the morning.

2.—(1) The occupier of a factory may secure in accordance with the provisions of this Act that the special exception for which this section provides shall apply in

First special exception.

A.D. 1938. — respect of that factory, and, whilst that special exception so applies, no other special exception for which this Act provides shall apply in respect of that factory.

(2) Whilst the said special exception applies in respect of a factory, section one of this Act shall not operate so as to prohibit the employment of a person in that factory between the hours of eleven o'clock in the evening and five o'clock in the morning on any night unless he was employed in that factory between the said hours in the manufacture of bread or flour confectionery or in any other work incidental thereto on five previous nights in the same week.

Second
special
exception.

3.—(1) The occupier of a factory may secure in accordance with the provisions of this Act that the special exception for which this section provides shall apply in respect of that factory, and, whilst that special exception so applies, no other special exception for which this Act provides shall apply in respect of that factory.

(2) Whilst the said special exception applies in respect of a factory, section one of this Act shall not operate so as to prohibit the employment of persons in that factory between the hours of eleven o'clock in the evening on Fridays and five o'clock in the morning on Saturdays, or between the hours of four o'clock and five o'clock in the morning on any day of the week.

Third
special
exception.

4.—(1) The occupier of a factory may secure in accordance with the provisions of this Act that the special exception for which this section provides shall apply in respect of that factory, and, whilst that special exception so applies, no other special exception for which this Act provides shall apply in respect of that factory.

(2) Whilst the said special exception applies in respect of a factory, section one of this Act shall not operate so as to restrict the employment of a person in that factory in any week unless he was employed in that factory in the manufacture of bread or flour confectionery or in any other work incidental thereto between the hours of eleven o'clock in the evening and five o'clock in the morning in more than one-half of the weeks in the period of five weeks immediately preceding the said week.

(3) The Secretary of State may by order direct that as respects any factory specified in the order the provisions of the foregoing subsection shall have effect as if for the reference to five weeks there were substituted a reference to such alternative number of weeks as may be specified in the order. A.D. 1938. —

5.—(1) If the occupier of a factory gives notice in such manner as the Secretary of State may by order prescribe to the inspector for the district in which the factory is situate and to persons employed in the factory of his intention to avail himself in respect of that factory, as from a date specified in the notice, not being earlier than seven days from the date upon which the notice is given, of one of the special exceptions for which this Act provides, that special exception shall apply in respect of that factory as from the date so specified. Requirements relating to special exceptions.

(2) If the occupier of a factory in respect of which such a special exception applies gives notice, in such manner as the Secretary of State may by order prescribe, to the inspector for the district in which the factory is situate and to persons employed in the factory that he desires that the special exception shall cease to apply in respect of that factory as from a date specified in the notice, not being earlier than seven days from the date on which the notice is given, that special exception shall cease to apply in respect of that factory as from the date so specified.

(3) A special exception shall continue to apply in respect of a factory until either—

- (a) it ceases by virtue of the provisions of the foregoing subsection to apply in respect of that factory, or
- (b) a notice applying a different special exception in respect of that factory takes effect in accordance with the provisions of subsection (1) of this section.

(4) Whilst a special exception applies in respect of a factory, the occupier shall keep such records and keep posted in the factory such notices relating to work in

A.D. 1938. — the factory as the Secretary of State may by order prescribe, and if the occupier fails to keep the said records or to keep the said notices posted, he shall be guilty of an offence, and shall be liable on summary conviction to a fine not exceeding twenty pounds.

Power of Secretary of State to provide for modifications of, and exemptions from, the restrictions imposed by this Act.

6.—(1) The Secretary of State may by regulations provide that the restrictions imposed by this Act shall not apply, or shall apply subject to such modifications as may be specified in the regulations, in respect of employment in factories—

- (a) in dough-making,
- (b) in oven-firing,
- (c) in work undertaken by reason of a breakdown of machinery or plant, or other unforeseen emergency,
- (d) in work for the purpose of providing supplies for public holidays and feast days,
- (e) in work for the purpose of providing supplies to meet seasonal demands in holiday resorts, and
- (f) in work done in any other circumstances or for any other purpose in or for which the Secretary of State is satisfied that it is desirable that special provision for work at night should be made.

(2) The Secretary of State may order that the restrictions imposed by this Act shall not apply, or shall apply subject to such modifications as may be specified in the order—

- (a) in respect of employment in any factory in work for the purpose of meeting a sudden and unexpected demand for bread, and
- (b) where the occupier of a factory is acquiring or erecting new plant or premises, in respect of employment in that factory during such period, not extending beyond two years from the commencement of this Act, as the Secretary of State considers reasonable in the circumstances.

Saving for work in biscuit factories.

7.—(1) This Act shall not apply in respect of the employment of persons in a factory in which the sole or principal work carried on is the manufacture of biscuits,

or in such part of any factory as may be specified in an order made by the Secretary of State, being a part in which the Secretary of State is satisfied that the sole or principal work carried on is the manufacture of biscuits : A.D. 1938.

Provided that the Secretary of State may, on the application of any trade board or association of employers or workers which appears to him to be concerned, by regulations provide that this Act shall apply, to the extent specified in the regulations, in respect of the employment of persons in such factories or parts of factories as aforesaid in work in or incidental to the manufacture of bread or flour confectionery other than biscuits, and whilst this Act so applies every reference therein to the manufacture of bread or flour confectionery shall, as respects the factories or parts of factories to which the regulations relate, be construed as a reference to the manufacture of bread or flour confectionery other than biscuits.

(2) Whilst any such order as aforesaid is in force with respect to a part of a factory, that part of the factory and the rest of the factory shall, for the purposes of this Act, be deemed to be separate factories.

8.—(1) Section sixteen of the public local and personal Act of the third year of the reign of His late Majesty King George the Fourth, chapter one hundred and six (which regulates the making and sale of bread), and section fourteen of the Bread Act, 1836, are hereby repealed.

Provisions
as to baking
on Sundays.
3 Geo. 4.
c. cvi.
6 & 7
Will. 4.
c. 37.

(2) The restrictions relating to work on Sundays contained in the Sunday Observance Act, 1677, shall, so far as they affect the manufacture of bread or flour confectionery or any other work incidental thereto, cease to have effect.

29 Cha. 2.
c. 7.

9. Sections one hundred and twenty-three to one hundred and twenty-five of the Factories Act, 1937 (which relate to the powers and duties of inspectors for the purpose of the execution of that Act and to matters connected therewith), shall apply for the purpose of the execution of the provisions of this Act which relate to employment in factories as if those provisions were contained in that Act, and shall apply for the purpose

Administra-
tion.
1 Edw. 8. &
1 Geo. 6.
c. 67.

A.D. 1938. — of the execution of any regulations made under this Act which relate to persons who, otherwise than in pursuance of a contract of service, engage by way of trade or for purposes of gain in the manufacture of bread or flour confectionery or in any other work incidental thereto, as if those regulations were made under that Act, and as if—

- (a) premises in which persons so engage in such work were a factory,
- (b) the persons who so engage in the work were the occupiers of the factory, and
- (c) for the word “employed” in the said sections there were substituted the words “engaged in the manufacture of bread or flour confectionery or in any other work incidental thereto.”

Offences
and
penalties.

10.—(1) If any person is employed in a factory in contravention of the provisions of this Act, the occupier of the factory shall be guilty of an offence in respect of each night on which that person is so employed in that factory, and shall be liable on summary conviction to a fine not exceeding twenty pounds for each offence.

(2) If any person engages in the manufacture of bread or flour confectionery or any other work incidental thereto in contravention of regulations made by the Secretary of State under section one of this Act, he shall be guilty of an offence in respect of each night on which he so engages in such work, and shall be liable on summary conviction to a fine not exceeding twenty pounds for each offence.

Power of
county
court to
modify
agreements.

11. Where, by reason of an agreement in force at the commencement of this Act between the lessor and the lessee of premises the whole or any part of which is used for the manufacture of bread or flour confectionery or any other work incidental thereto, the lessee is prevented from carrying out structural or other alterations in the premises, the lessee may apply, in accordance with county court rules, to the county court, and, if the court is satisfied that, having regard to the restrictions on hours of work imposed by or under this Act, the lessee ought reasonably to be allowed to carry out any

such structural or other alterations, the court may make such order setting aside or modifying the terms of the agreement as the court considers just and equitable in the circumstances of the case. A.D. 1938. —

12.—(1) Any regulations or order made by the Secretary of State under this Act may be made for a limited period or without limit of period, and may be made subject to such conditions as he thinks fit, and may contain such supplemental and consequential provisions as he considers necessary for giving full effect to the regulations or order. Provisions as to regulations and orders of Secretary of State.

(2) Any regulations made by the Secretary of State under this Act may be made either generally, or in relation to any area or any description of factory or premises.

(3) Any regulations made by the Secretary of State under this Act shall be laid as soon as may be before Parliament.

(4) Any order made by the Secretary of State under this Act may be varied or revoked by a subsequent order made by him.

13.—(1) In this Act—

“calendar year” has the same meaning as in the Factories Act, 1937,

“chief inspector” means the chief inspector appointed under the Factories Act, 1937,

“factory” means premises which are a factory within the meaning of subsection (1) of section one hundred and fifty-one of the Factories Act, 1937,

“inspector” means an inspector appointed under the Factories Act, 1937,

“week” means the period between noon on any Sunday and noon on the succeeding Sunday,

“work incidental to the manufacture of bread or flour confectionery” includes slicing, wrapping, or otherwise preparing bread or flour confectionery for sale or distribution, but save as aforesaid does not include work in or incidental to distribution.

Interpretation.

A.D. 1938.

—

(2) The chief inspector may direct that for the purposes of this Act—

- (a) a part of a factory shall be deemed to be a separate factory, or
- (b) two or more factories shall, whilst in the occupation of the same person, be deemed to be a single factory,

and may revoke any such direction at any time.

(3) Any such direction or revocation as aforesaid shall take effect after the expiration of seven days from the date upon which notice in writing thereof is given by the chief inspector to the occupier of the factory or factories to which the direction or revocation relates.

Application
to Scotland.

14. In the application of this Act to Scotland—

- (a) section nine shall have effect as if after the words “one hundred and twenty-five” there were inserted the words “and subsection (9) of section one hundred and fifty-six,” and
- (b) section eleven shall have effect as if for the references to the county court and to county court rules there were respectively substituted references to the sheriff and to rules made by Act of Sederunt.

Short title,
commence-
ment and
extent.

15.—(1) This Act may be cited as the Baking Industry (Hours of Work) Act, 1938.

(2) This Act shall come into operation—

- (a) if, before the first day of January nineteen hundred and forty the Secretary of State lays before Parliament a certificate that he is satisfied that a trade board has been established under the Trade Boards Acts, 1909 and 1918, for a trade which comprises, or substantially comprises, the manufacture of bread and flour confectionery, upon such date as, upon the presentation to His Majesty by both Houses of Parliament after the said first day of January nineteen hundred and forty of an address praying that this Act may be brought into operation, His Majesty may by Order in Council appoint, or

(b) if the Secretary of State has not laid such a certificate before Parliament before the said first day of January nineteen hundred and forty, on that date. A.D. 1938. —

(3) Any certificate laid before Parliament under this section shall be deemed to be a statutory rule for the purposes of section three of the Rules Publication Act, 1893. 56 & 57 Vict. c. 66.

(4) This Act shall not extend to Northern Ireland.

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Baking Industry [1 & 2 GEO. 6.]
(*Hours of Work*) Act, 1938.

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